

Ravendra Singh v. U.P.P.C.L.

High Court of Judicature at Allahabad · Division Bench · 1 April 2016 · Writ-C No. 13321 of 2016 · **Writ disposed; petitioner relegated to Clause 6.5 representation for bill correction.**

HEADNOTE

Without examining a disputed commercial demand of Rs.5,67,119 on merits, the Division Bench disposed of the restoration writ by permitting a representation under Clause 6.5 of the U.P. Electricity Supply Code, 2005. If filed within three days, the licensee must consider it and issue a fresh corrected bill; supply is to be restored on payment of that bill, or, if the consumer remains aggrieved, on compliance with appellate formalities subject to the appeal.

FACTUAL SUMMARY

The petitioner held commercial connection SKO-3896-034158 for a flour mill. Supply was disconnected in April 2013 for unpaid dues of Rs.15,326. He paid Rs.32,700 covering arrears to December 2013 plus reconnection and was restored. On 26 October 2015 supply was again cut for alleged dues of Rs.95,773. After he deposited Rs.30,000 plus Rs.550 reconnection charges as directed on 10 November 2015, the connection was disconnected once more on a demand of Rs.5,67,119. He sought quashing of the 5 January 2016 notice and restoration.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection-representation

HOLDING

A writ seeking quashing of a disputed electricity demand and restoration of supply may be disposed of by relegating the consumer to a representation under Clause 6.5 of the U.P. Electricity Supply Code, 2005. A timely representation must be considered and a fresh corrected bill issued; supply is to be restored on payment of that bill within the time allowed, or, if the consumer remains aggrieved by the correction, on compliance with the formalities for filing an appeal, subject to the appellate proceedings. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 Without examining a disputed commercial demand of Rs.5,67,119 on merits, the Division Bench disposed of the restoration writ by permitting a representation under Clause 6.5 of the U.P. Electricity Supply Code, 2005.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — LEGALITY AND QUANTUM OF THE RS.5,67,119 DEMAND AND VALIDITY OF THE NOTICE DATED 5 JANUARY 2016

Left to a Clause 6.5 representation and, if still aggrieved, to appeal; the writ was not decided on the merits of the bill. ¶ 1